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SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

25STCV28086

NA

YOUNG LEE vs UNIVERSITY OF SOUTHERN CALIFORNIA, et al.

July

16, 2026

8:30

AM

NATURE OF PROCEEDINGS:

DEFENDANT UNIVERSITY OF SOUTHERN CALIFORNIA'S DEMURRER TO PLAINTIFF'S FIRST
AMENDED COMPLAINT.

RULING:

The Court sustains the
Demurrer without leave to amend as to the Seventh Cause of Action (Labor Code
§§ 1050, 1052) and otherwise overrules it.

Twenty
days to answer.

Defendant to give notice.

I.

BACKGROUND

On May 4, 2026,
(Plaintiff) filed the First Amended Complaint (FAC) against (Defendant), listing
Causes of Action for:

(1) SEX/RACE/NATIONAL ORIGIN HARASSMENT - Govt.
Code §12940(j);

(2) SEX/RACE/NATIONAL ORIGIN DISCRIMINATION -
Govt. Code §12940(a);

(3) RETALIATION - Govt. Code §12940(h);

(4) FAILURE TO PREVENT HARASSMENT,
DISCRIMINATION, and RETALIATION - Govt. Code §12940(k);

(5) VIOLATION OF UNRUH ACT CIVIL RIGHTS ACT –
Civil Code §51;

(6) DISCRIMINATION AND HARASSMENT IN THE
EDUCATIONAL SETTING – Ed. Code §66270;

(7) VIOLATION OF LABOR CODE §§1050, 1052;

(8)
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS; and

(9)

NEGLIGENT SUPERVISION.

Plaintiff alleges that a professor and serial sexual harasser of USC's students and employees discriminated, harassed, and retaliated against Plaintiff, as both her academic advisor and supervisor, based upon sex, race and national origin, forcing her to quit her job.

On June 2, 2026, Defendant filed the Demurrer to the FAC, requesting that it be sustained as to Causes of Action One through Four (FEHA); Five (Unruh Act); Seven (Labor Code §§ 1050, 1052); Eight (Intentional Infliction of Emotional Distress (IIED)) ; and Nine (Negligence).

Plaintiff opposes, based upon counterarguments such as, "each of the challenged Causes of Action states facts sufficient to proceed, or, at minimum, is capable of being cured by amendment,..." (Opposition, 5:19-21.)

II.

LEGAL STANDARD

Demurrers are to be sustained where a pleading fails to plead adequately any essential element of the cause of action. (Cantu v. Resolution Trust Corp. (1992) 4 Cal.App.4th 857, 879-880.) "[T]he complaint must include the prima facie elements of employment discrimination...." (Caldwell v. Paramount Unif. Sch. Dist. (1995) 41 Cal.App.4th 189, 202, fn. 7.) A complaint does not necessarily need to be a model of pleading but needs sufficient factual allegations. (E.g., State v. The Superior Court (2001) 87 Cal.App.4th 1409, 1411.)

When considering demurrers, courts read the allegations liberally, reasonably and in context. (MKB Management, Inc. v. Melikian (2010) 184 Cal.App.4th 796, 802; McKenney v. Purepac Pharmaceutical Co. (2008) 167 Cal.App.4th 72, 77; Taylor v. City of Los Angeles Dept. of Water and Power (2006) 144 Cal.App.4th 1216, 1228, disapproved of on other grounds by Jones v. Lodge at Torrey Pines Partnership (2008) 42 Cal.4th 1158, 1173.) In ruling upon demurrers, courts treat as being true "not only the complaint's material

factual allegations, but also facts that may be implied or inferred from those expressly alleged.” (Poseidon Development, Inc. v. Woodland Lane Estates, LLC (2007) 152 Cal.App.4th 1106, 1111-1112. Accord, Schauer v. Mandarin Gems of Cal., Inc. (2005) 125 Cal.App.4th 949, 953.)

“In considering a demurrer, the court is not required to ignore controlling law merely because the plaintiff does not rely on it.” (Dey v. Continental Central Credit (2008) 170 Cal.App.4th 721, 730.)

III.

ANALYSIS

Defendant seeks an Order sustaining the Demurrer to certain claims, addressed specifically below.

In opposition, Plaintiff primarily asserts the following positions:

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Read in its full context, the FAC sufficiently alleges that harassment and discrimination were by a supervisor and work-related, within a university context.

.

Employers can be liable for supervisors' sexual harassment.

.

Alleged retaliation occurred both before and after employment ended, which are both actionable.

.

The underlying claims do not fail and so neither does Failure to Prevent FEHA violations.

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The Unruh Act claim is not confined to employment but includes denying equal privileges, which applies to universities

(Kao v. Univ. of San Francisco (2014) 229 Cal.App.4th 437).

Plaintiff could better allege Labor Code

violations, including that misrepresentations serve as “a direct conduit to prospective academic employers” and were “calculated to poison the small professional pool in Plaintiff’s field,...” (Opposition, pp. 14-15.)

Defendant’s Intentional Infliction of

Emotional Distress is alleged, including its decision to leave Kang in place as Plaintiff’s academic advisor and supervisor, during the protracted investigation.

A negligence claim is viable based upon

foreseeability and physical contact (Walton vs. Victor Valley Community College Disc., 119 Cal.App.5th at 1172-1175).

A. First-through-Fourth
Claims (FEHA).

Defendant contends that

Plaintiff inadequately alleges harassment during an academic relationship but not in employment (citing Fitzsimons v. California Emergency Physicians Med. Grp. (2012) 205 Cal.App.4th 1423).

Where sufficient factual

allegations are intermingled with conclusions, the complaint is not subject to a demurrer just as to the conclusions. (Berkley v. Dowds (2007) 152 Cal.App.4th 518, 525.)

Modernly, in pleading

FEHA causes of action, plaintiffs are only required to set forth the essential facts sufficiently to acquaint defendants with the cause of action. (See Alch v. Superior Court (2004) 122 Cal.App.4th 339, 382-383 [“They further allege the employers have hired statistically significant lower numbers of older writers than would be expected given the relevant qualified applicant pool, and these disparities increase in direct relationship to age. They also describe anecdotal evidence of intentional discrimination. We discern no missing statutory element in these allegations”]; Taylor

v. City of Los Angeles Dept. of Water and Power (2006) 144 Cal.App.4th 1216, 1236 [“even though” plaintiff “did not specifically plead ...” the court determined that plaintiff “sufficiently pleaded the causal link between the protected activity and the defendants’ adverse action.”], disapproved of on other grounds by Jones v. Lodge at Torrey Pines Partnership (2008) 42 Cal.4th 1158, 1173; Thomas v. Regents of Univ. of California (2023) 97 Cal.App.5th 587, 614 [“allegations of pervasive ongoing harassment, combined with the general allegation that gender was ‘[a] substantial motivating reason for ... conduct’ are sufficient.”].) However, it is insufficient to allege just conclusions concerning alleged discrimination, harassment or retaliation. (Bagatti v. Dep’t of Rehab. (2002) 97 Cal.App.4th 344, 366, fn. 8 [“These conclusionary allegations, which allege no specific acts, are insufficient to survive demurrer.”]; Fisher v. San Pedro Peninsula Hosp. (1989) 214 Cal.App.3d 590, 604, 608, 613 [as to claims for harassment and retaliation, “facts in support of each of the requirements of a statute upon which a cause of action is based must be specifically pled”].)

“[I]n some cases the hostile message that constitutes ... harassment is conveyed through official employment actions, and therefore evidence that would otherwise be associated with a discrimination claim can form the basis of a harassment claim.” (Roby v. McKesson Corp. (2009) 47 Cal.4th 686, 708.) Even official employment actions can evidence a harassment claim where the action communicates a hostile or offensive message to the employee. (Pollock v. Tri-Modal Distribution Services, Inc. (2021) 11 Cal.5th 918, 932-933.)

An employer may be strictly liable for harassment of an employee by an agent or supervisor. (State Dept. of Health Services v. Superior Court (2003) 31 Cal.4th 1026, 1034; Fiol v. Doellstedt (1996) 50 Cal.App.4th 1318, 1331; John Doe v. Capital Cities (1996) 50 Cal.App.4th 1038, 1052. Accord Patterson v. Domino’s Pizza, LLC (2014) 60 Cal.4th 474, 491 [“under the FEHA, an employer is strictly liable for all acts of sexual harassment by a supervisor”].) “An employer continues to be strictly liable for hostile environment sexual harassment by a supervisor. An employee’s failure to report harassment to the employer is not a defense on the merits to the employee’s action under the FEHA, but at most it serves to reduce the damages recoverable.” (State Dept. of Health Services v. Superior Court (2003) 31 Cal.4th 1026, 1049.) “[W]here the conduct ... occurred offsite and/or during nonworking hours, the question of whether the employer is strictly liable for a supervisor’s conduct tends to overlap with whether the conduct is sufficiently work related.” (Kruitbosch

v. Bakersfield Recovery Services, Inc. (2025) 114 Cal.App.5th 200, 217.)

The FAC, read in its full context, contains references to employment-related discrimination, harassment and retaliation, done contemporaneously while Plaintiff was still being supervised and Defendant was being officially investigated without any action. The FAC combines specific enough facts, mixed in with some conclusions. (See, e.g., FAC, ¶¶ 5 (“As her direct supervisor, Kang targeted Plaintiff and first required her to perform domestic duties for him at his home,... Kang aggressively propositioned Plaintiff romantically. When Plaintiff rejected him, Kang physically assaulted Plaintiff and harassed Plaintiff and her partner ... in person, on the phone, and via text message and email.”), 6 (“harassment and retaliation against Plaintiff was so severe and pervasive that it forced her to quit....”), 7 (“she complained to USC about Kang’s conduct and participated in an investigation of his misconduct. In response, Kang directly retaliated against Plaintiff by threatening to remove her name from an academic paper they co-authored and which represented years of Plaintiff’s academic work towards her PhD.”), 46 (“communications and requests spanned from at least April 2020 to October 23, 2021 and occurred on a daily basis, sometimes multiple times a day, and are far too numerous to itemize....”), 89 (“harassment and retaliation for Plaintiff rebuffing his romantic advances when she was employed by USC and he was her supervisor,...”), 94 (“USC investigators interviewed Plaintiff extensively about Kang’s retaliatory emails, threats and theft of her intellectual work but did nothing to address or prevent it.”), 105 (“During her employment, Kang subjected Plaintiff to severe and pervasive sexual harassment based on her sex and her race/national origin.”), 108 (“harassment thus spanned from 2020 until at least August 2024,...”), and 110 (“USC knew as early as 2015 and no later than December 2, 2022 that other female USC employees had complained that Kang bullied and harassed women at USC.”).)

An opinion that Defendant cited (Reply, 5:25), distinguishably had analyzed evidence, and not allegation sufficiency. (See *Capitol City Foods, Inc. v. Superior Court* (1992) 5 Cal.App.4th 1042, 1050 [“defendant conclusively refuted the allegation Johnson forced plaintiff to accompany him or coerced her in any way prior to entering his bedroom.”].) With regard to ruling upon demurrers, courts have found unsupportive counsel’s citations to authorities that did not address pleading standards. (E.g., *Alch v. Superior Court* (2004) 122 Cal.App.4th 339, 382, fn. 37 [“Both ... were appeals from a

grant of summary judgment ..., and did not address pleading requirements.”].)

Furthermore, the rule about specific allegations controlling over general, is inapposite, because Plaintiff’s allegations of FEHA violations, occurring in the two contexts of employment and education, are not necessarily mutually exclusive or impossible to occur at different times. If there is any inconsistency between the specific allegations upon which a conclusion must be based and the conclusion, the specific allegations control. (E.g., *Careau & Co. v. Sec. Pac. Bus. Credit* (1990) 222 Cal.App.3d 1371, 1390; *B & P Dev. Corp. v. City of Saratoga* (1986) 185 Cal.App.3d 949, 953.) “[I]t is possible that specific allegations will render a complaint defective when the general allegations, standing alone, might have been sufficient.” (*Ferrick v. Santa Clara Univ.* (2014) 231 Cal.App.4th 1337, 1352.) (Underscoring added.)

These Demurrer points are overruled.

B. Fifth
Claim (Unruh Act).

Defendant contends that the Unruh Act is inapposite to employment discrimination allegations based on sexual harassment (citing *Brown v. Smith* (1997) 55 Cal.App.4th 767, 787).

That proposition is to argue a distinction without a difference, because Civil Code section 51 et seq. in its broader scope beyond the Unruh Act, can apply. This has been an issue of some confusion in the past. Provisions against discriminatory violence and intimidation, and denial of civil rights by means of threats and intimidation (Civ. Code, §§ 51.7 and 52.1) may be asserted in cases alleging wrongful termination and employment discrimination, but they are not part of the Unruh Civil Rights Act. (*Stamps v. Superior Court* (2006) 136 Cal.App.4th 1441, 1456.)

Here, the FAC alleges, at paragraph 174, “the requirements of the Unruh Act, codified in Civil Code section 51, et seq.” (Underscoring added.) Thus, the Fifth Cause of Action, incorporating-by-reference all previous allegations, expressly encompasses sections 51.7 and 52.1. Moreover, the claim label need not be accurate. In

ruling upon demurrers, courts consider whether any cause of action has been alleged sufficiently, notwithstanding that a cause of action is labeled otherwise. (Arce ex rel. Arce v. Kaiser Found. Health Plan, Inc. (2010) 181 Cal.App.4th 471, 482; Berkley v. Dowds (2007) 152 Cal.App.4th 518, 525; McBride v. Boughton (2004) 123 Cal.App.4th 379, 387.) “[T]he allegations in the body of the complaint, not the caption, constitute the cause of action against the defendant.” (Davaloo v. State Farm Ins. Co. (2005) 135 Cal.App.4th 409, 418.)

Further, the FAC is not confined to employment as that constitutes one part of broader allegations. (See, e.g., FAC, ¶ 181 (“Plaintiff had the right to be free from gender and racial discrimination, sexual harassment and retaliation under California’s Unruh Civil Rights Act while she was a student and employee....”).) Demurrers do not lie as to only parts of causes of action, where some valid claim is alleged. (E.g., Poizner v. Fremont General Corp. (2007) 148 Cal.App.4th 97, 119 [“A demurrer must dispose of an entire cause of action to be sustained.”]; Kong v. City of Hawaiian Gardens Redev. Agency (2003) 108 Cal.App.4th 1028, 1046.)

The Demurrer position is overruled.

C. Seventh Claim (Labor Code §§ 1050, 1052).

Defendant maintains that the Labor Code claim fails to be pled specifically, including as to the identity of prospective employers.

Labor Code section 1050 states: “Any person, or agent or officer thereof, who, after having discharged an employee from the service of such person or after an employee has voluntarily left such service, by any misrepresentation prevents or attempts to prevent the former employee from obtaining employment, is guilty of a misdemeanor.” Section 1050 applies to misrepresentations made to prospective employers. (Kelly v. General Telephone Co. (1982) 136 Cal.App.3d 278, 288.) Employers violating Labor Code section 1050 may be liable civilly for treble damages to former employees. (Lab. Code, § 1054.) Labor Code section 1052 provides any person who causes,

permits, or fails to take reasonable steps to prevent, a violation of section 1050, also may be in violation. Labor Code section 1053 states, in pertinent part: "Nothing in this chapter shall prevent an employer or an agent, employee, superintendent or manager thereof from furnishing, upon special request therefor, a truthful statement concerning the reason for the discharge of an employee or why an employee voluntarily left the service of the employer."

Plaintiff's broad

interpretation of those sections as including misrepresentations made during employment having the potential to reach prospective employers post-employment, is unsupported by any applicable authority. On the contrary, there is very little citable California law on point as to those statutory provisions that plainly reference employees who already left work followed by employers misrepresentations trying to prevent the employees' successive employment. Judges should not disregard express statutory language or add language that is not there. (Yao v. Superior Court (2002) 104 Cal.App.4th 327, 333.)

Here, Plaintiff's

allegations completely lack any reference to the elements of a misrepresentation about her as a former employee to any prospective employer.

Additionally, from the Opposition

and allegations, the Court finds that any amendment of this claim would be futile. " '[W]here the nature of the plaintiff's claim is clear, and under substantive law no liability exists, a court should deny leave to amend because no amendment could change the result.' " (San Mateo Union High Sch. Dist. v. County of San Mateo (2013) 213 Cal.App.4th 418, 441.) " '[L]eave to amend should not be granted where ... [an] amendment would be futile.' " (Long v. Century Indemnity Co. (2008) 163 Cal.App.4th 1460, 1468.)

Therefore, the Demurrer

is sustained, without leave to amend, as to the Seventh Cause of Action.

D. Eighth

Claim (IIED).

Defendant reasons that the IIED claim cannot be based

upon vicarious liability based upon an individual's conduct, and outrageous

conduct is not alleged as to Defendant.

"[W]hether conduct is 'outrageous' is usually a question of fact." (So v. Shin

(2013) 212 Cal.App.4th 652, 672. See also Cross v. Bonded Adjustment Bureau (1996) 48 Cal.App.4th 266, 283 [outrageous conduct is a fact question

where reasonable minds may differ]; Kovr-Tv, Inc. v. Superior Court

(1995) 31 Cal.App.4th 1023, 1028 [outrageous conduct is not a bright-line

determination, but depends upon an intuitive appraisal of "values, sensitivity

threshold, and standards of civility...."]; Pulver

v. Avco Fin. Servs. (1986) 182 Cal.App.3d 622, 637 [demurrer should have been overruled,

given sufficient allegations that defendant's conduct was, "outrageous,

was engaged [in] with the intent to cause and with conscious disregard of the

probability of causing emotional distress. As a legal result of that conduct,

plaintiff did in fact suffer severe emotional distress and incurred the

damages'...."].)

Employment actions can involve outrageous conduct

including by employers. (E.g., Rulon-Miller

v. I.B.M. Corp. (1984) 162 Cal.App.3d 241, 255 [employer stated to employee

that she could not see her romantic friend or she would face employment

termination], overruled on other

grounds by Guz v. Bechtel Nat'l,

Inc. (2000) 24 Cal.4th 317, 351; Ankeny

v. Lockheed Missiles and Space Co. (1979) 88 Cal.App.3d 531, 537

[employer's outrageous conduct not alleged due to dearth of facts].)

Here, Plaintiff adequately alleges that Defendant knowingly

allowed the same supervisor to sexually harass employees for years, and during

Plaintiff's employment. (E.g., FAC, ¶¶ 7 ("When Plaintiff learned that Kang had

been harassing her Asian female colleagues, she complained to USC...."), 41 ("USC

did not provide Plaintiff with training regarding discrimination and/or sexual

harassment.... USC did not provide Kang with this training either,..."), 69 ("At

the end of 2021, Plaintiff was so distressed at the thought of seeing Kang on

the USC campus that she was forced to quit her position as Kang's Research

Assistant."), 100 ("USC did not terminate Kang and continued to feature him

prominently on its website until approximately March 2026.", 8 ("USC was fully

aware of these facts but did nothing to prevent or remedy this outrageous

outcome."), 9 ("despite USC's ultimate conclusion that Kang had harassed

Plaintiff and others, and despite knowing that Kang had severely penalized

Plaintiff for her complaint against him, Kang remained a tenured professor....”), and 225 (“Defendants have thus created and enabled a culture of toxic abuse of its employees and students, and has let the abusers, like Kang, walk freely among their victims.”).)

The Demurrer is overruled as to these bases.

E. Ninth

Claim (Negligence).

Defendant argues that the employer cannot be liable for a claim of negligence related to sexual harassment or conduct occurring apart from the employment.

Defendant’s cited opinion

contains a disclaimer about it being case-specific. (See *Thomas v. Regents of Univ. of California* (2023) 97 Cal.App.5th 587, 627–628 [“This is not to say sexual harassment in the form alleged in this case does not cause significant harm, nor that a university may never be held to have a duty to protect its students from nonphysical injuries. We simply are not prepared to take the step *Thomas* suggests on the basis of the briefing she has provided.”].)

That opinion also mentions cases basing employers’ duties upon involvement of “sexual assault”, “foreseeable assault” and “negligent hiring/supervision”, which are aspects alleged in the FAC. (E.g., ¶¶ 106 (“he physically assaulted her....”), 28-29 (“sexual assault”), 28 (“USC’s culture of hiring, employing and enabling men in positions of authority who prey on Asian female international students.”), 182 (“Defendants did not reasonably investigate, supervise or monitor Kang to ensure the safety of its students and student/employees, including Plaintiff.”).) Indeed, colleges may have a duty to protect students from physical harassment, or to refrain from negligent hiring, supervision and retention. (*Walton v. Victor Valley Cmty. Coll. Dist.* (2026) 119 Cal.App.5th 1164, 1175.)

And, generally speaking,

factors for determining whether there is a duty owed to a plaintiff include “‘forseeability of harm to the plaintiff, the degree of certainty that plaintiff suffered injury, the closeness of the connection between the defendant’s conduct and the injury suffered, the moral blame attached to defendant’s conduct, the policy of preventing future harm, the extent of the burden to the defendant and the consequences to the community of imposing a duty to exercise care with resulting liability for breach, and the availability, cost, and

prevalence of insurance for the risk involved.' " (Gu v. BMW of North America, LLC (2005) 132 Cal.App.4th 195, 208.)

In summary, given the particular allegations of the FAC, the Court cannot soundly rule as a matter of law that the allegations fail to support a duty in negligence.

IV.

CONCLUSION

Accordingly, the Court sustains the Demurrer only as to the Seventh Cause of Action, and otherwise overrules it, for reasons stated herein.